8/1/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: August 1, 2023 at 6:00 p.m.

VENUE: WebEx

BEFORE: A.L.J. MAUREEN LEARY

A.L.J. JAMES COSTELLO

Reported by Anthony McClain

(The proceedings resumed at 6:00 p.m.)

THE REPORTER: We are on the record.

A.L.J. LEARY: Thank you. I call Case 23-G-0225 Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of the Brooklyn Union Gas Company doing business as National Grid New York for Gas Service. And Case 23-G-0226 Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of KeySpan Gas East Corporation doing business as National Grid, again for Gas Service.

Good evening, everyone and welcome. We are here this evening for a public statement hearing that was noticed on June 30th by the Secretary to the Public Service Commission. My name is Maureen Leary. I am an Administrative Law Judge with the Office of Hearings in the Department of Public Service. And with me this evening is Administrative Law Judge James Costello. Together, we are responsible for -- for presiding over this hearing and potentially every other hearing including the evidentiary hearing in these cases. We're also responsible for the development of a complete record in the proceedings for the Public Service

Commission's review.

Let me welcome two attendees also from the Department, our Commission Chair, Rory Christian, and Commissioner John Maggiore. Welcome. Thank you for attending. It is an honor to see both of you here. And I know the public appreciates your attendance.

Chair Christian, can I ask you to take this opportunity to say anything to the public attending the hearing?

CHAIR CHRISTIAN: Thank you, Judge Leary. Just want to take a moment and thank everyone for being here tonight. Your time is valuable and I know these matters are of great importance to all. And we look upon these meetings as opportunities for public engagement to inform, educate, and impower. As Judge Leary mentioned, the information gleaned through these discussions becomes part of the record and this is an excellent opportunity for the public's voice to be heard.

So I myself am here today to listen, observe, and take back what's stated, and take into consideration your concerns. So thank you all for coming tonight and thank you, Judge Leary.

A.L.J. LEARY: Thank you, Chair Christian. Commissioner Maggiore.

COMMISSIONER MAGGIORE: Okay. I -- I could only echo what the Commissioner said. I'm here to listen.

After this moment right here, you're not going to hear from me because I want to hear from you. I do want to say that I find public statement hearings very, very helpful understanding the impact of what we do. You know, we learn new information ... that becomes a part of the record. Everybody who has taken time out of their day for the process, it's important and that's very helpful for us. So thank you very much.

A.L.J. LEARY: Thank you. So let's get to it. I have a little bit of background information for all attendees. And the Brooklyn Union Gas Company, which is doing business as National Grid, I'm going to refer to as KEDNY, K-E-D-N-Y, and KeySpan Gas East Corporation, also doing business as National Grid, I will refer to as KEDLI. So KEDNY serves in the -- the Metropolitan New York area and KEDLI is serving Long Island. So they're collectively known this evening as the companies and

8/1/23 - National Grid, NY - 23-G-0225/23-G-0226 they filed amendments to their gas tariff schedules on April 28th, 2023. They propose to increase their annual gas delivery revenues effective March 31st, 2024. KEDNY proposes to increase its revenues by $414 million which is a 28 percent increase in base delivery revenues or a 17 percent increase in total revenues. KEDLI proposes to increase its revenues by $228 million representing a 24 percent increase in base delivery revenues or a 14 percent increase in total revenues.

Although the actual bill impacts of these proposed increases and charges on any particular customer will vary based upon things that we know as revenue allocations and rate design, the Companies state that a typical KEDNY residential heating customer will have approximately a $30.95 average monthly bill increase. A typical KEDLI residential heating customer will have approximately a $28.52 average monthly bill increase.

Now under New York law, known as the Public Service law, the Public Service Commission must consider a utility's proposal and may adopt it in whole or in part, reject it in whole or in part, or modify it. The statutory timeframe for

considering a rate case is generally eleven months and that amount of time can be exceeded based upon the negotiations, for example, of the parties. We're holding this hearing tonight so that you can provide your comments on KEDNY and KEDLI's proposal -- proposals which will be considered by the Commission.

So let's talk about the Commission. As you're aware, our Chair is at the public statement hearing along with one of our Commissioners. There are other Commissioners and they are Diane Burman, James Alesi, Tracey Edwards, John Howard, and David Valesky. So thank you so much Chair and Commissioner Maggiore again for attending. Let me talk a little about the process and explain what we're going to do this evening.

The purpose -- the sole purpose of this hearing is to provide you with the opportunity to tell the Commission your thoughts on the companies' rate proposals. The statements you make this evening will become a part of this record. And we have a court reporter, Mr. McClain, who is transcribing this evening's comments and will prepare a transcript of this hearing. That transcript will be included in the official record of this proceeding

so that your comments can be considered. Once -- when it is ready, the transcript will be available for viewing on the Department of Public Service website. I want to give you two numbers.

I've already stated that when you go on to the Department's website, you need these numbers in order to access the information in these cases. You really only need one of them now but I'm going to give you both, 23-G-0225 and 23-G-0226. And by the way, there's a hyphen between the twenty-three, the G, and the last four numbers.

So this is not an evidentiary hearing. We do not have a question-and-answer session. It's just a forum to hear just comments from you. The good news is, it's not the only opportunity for comment. We will be holding in-person public statement hearings at dates to be announced. And also, you -- if you did not pre-register to speak today, we're still going to give you an opportunity if you're on the line to provide a comment should you choose to do so.

But again then there are other ways to comment -- comment particularly in writing on the Department's website, by email to the Secretary, by

regular mail or you can even phone the Department's main number. Regardless of how the comments are submitted, they're going to be given equal consideration. And in the notice that the Secretary issued identifying these hearing dates, it's today and tomorrow for the public statement hearings. That notice has an August 4th deadline, apparent deadline in it, for providing comments. I want to just advise everyone that that is an advisable deadline or timeframe. But we're going to take comments throughout the pendency of the proceeding. The reason we have that date in there is so you have time to submit your comments and have them be considered by the parties in the case who are filing testimony because your thoughts matter to them as well. So do not be concerned if your comments come in on August 5th. There's still time but we do recommend that you stay pretty closely to that timeframe.

So if you have registered to make a statement, we ask that you summarize your statement for oral presentation and submit a full written statement by email or mail. We have a number of speakers this evening and we want to get to everyone. So we want to ask you to stay within about a three-

minute timeframe for providing your comments. I'm first going to call those persons who preregistered to speak. If you are not available or have some technical difficulties when I call your name, I will continue with the next person but I'm going to come back to you so do not worry. I will call your name again after others are heard.

So there are two types of people who are registered. Some are registered and participating electronically on their computers. Others are registered by phone.

So I want you to look at the screen where the powerpoint talks about raising your hand. If you are participating by phone, you will need to press star three for us to recognize you and a hand will appear next to your phone number. Your name is not appearing, your phone number is appearing. But once you do -- do press star three, we're going to be able to see that you are the person whose name has been called. And that will allow us to unmute your line and just be patient. I will indicate that your line has been unmuted and that you can proceed with your statement.

For those participating on their

computers, again, we're going to -- we're going to be able to see your name. We will call your name. We will unmute your line. You'll hear a tone and please be reminded to have your own telephone or your own computer off of mute, unmute yourself. So when your line is unmuted, please state your name for the record and indicate the organization, if any, on which -- or on whose behalf you are speaking. Please speak slowly and clearly so that the court reporter can accurately capture your statement for the record.

Okay. I'm going to proceed with our first speaker, I'm going to call Sally Lake. Ms. Lake, I think you are unmuted so you can proceed with your statement.

MS. LAKE: Thank you. My name is Sally Lake and I'm a member of Third Act. I live in Westchester County. I'm greatly disturbed about the National Grid's cases. I believe the international panel on climate change when they say we have a severely short timeline to avoid a worldwide life changing eCrisis. As our new normal, think Phoenix with 31 days over 110 degrees, Arizona with its burn center and ICUs filling up with people severely burned from falling on asphalt. The temperature of

the coastal northeast, that means us, is increasing at twice the rate of the interior of the northeast and faster than most places in the northern hemisphere. We're disturbingly short of reducing emissions by the IPCC's recommendation.

Expanding National Grid's network and customer base sounds to me like it could increase emissions for a long time. Both their schemes put a break on New York achieving our ambitious emissions and clean energy goals. An ordered offset of part one reductions and emission what we've already achieved. Refurbishing or replacing the old pipelines with new ones equips us with infrastructure to continue emitting for decades. I'm not aware of any plans by National Grid to sunset their infrastructure in order to reduce or eliminate emission -- emissions in the future. I cringe to think of my nephews and their babies in a world where National Grid is feeding fossil fuel emissions past the time when we need to have eliminated them. Thanks for hearing my testimony.

MR. WHITE: Okay.

A.L.J. LEARY: Thank you. Our next speaker, Juan Calderon. Juan Calderon.

MR. WHITE: He may have called in, Your Honor. I don't see him electronically.

A.L.J. LEARY: I have a 917 number and a 315 number. Juan Calderon, would you press star three if you are a call-in user? All right. Let's move on. Lonnie Brame. Lonnie Brame. Okay. Moving on, Cindell Rock. Cindell Rock. Actually, I'm seeing a hand-up. I'm sorry. The 917 user has a hand up. Mr. White, let's unmute and see who that is.

MR. DAVIS: Hi. I am sorry. My name is Michael Davis. I have been connected by phone.

A.L.J. LEARY: Okay, Mr. Davis, I'm going to get to you in a few. Would you lower your hand? Just press star three. I thought you were either Juan Calderon --

MR. BRAME: Good evening. Good evening. My name is Lonnie Brame.

A.L.J. LEARY: Go ahead, Mr. Brame. We can hear you.

MR. BRAME: Yes. I'm a delegate of Suffolk County Worker's Benefit council. I'm making a statement on behalf of the council. The counsel’s a delegate body of Suffolk County farm workers and

other low-paying workers including landscapers, house cleaners, and restaurant workers, day laborers, home health aides and others and -- and our families. Our living makes Long Island one of the richest regions of New York State and the nation. But many of us work two or three jobs but still can't make ends meet. So we don't need this raise.

The primary mission of New York State Public Service Commission and I quote to ensure affordable, safe, secure, and reliable access to electric, gas, and other public utilities. For NYS business, the residential communities had just and reasonable rates and to protect the people from the abuse of monopoly power. Yet hardworking families of Suffolk County are struggling every day to put food on our table, pay utilities and other necessities. Newsday reported 10 percent of 600,000 National Grid customers are one or two month behind on their bills and risk of being shut off. Members of PSC, to step into any rate increase would be a complete failure to carry out your mission. Rates should go down but not up. The increase to National Grid stakes would not only be deadly for low-income ratepayers, with customers struggling to pay their bills, businesses

will be slammed with higher bills, fewer customers since residents will be forced to choose between paying their bills and buying food. Commissioners of the PSC, your duty is to ratepayers of the state.

We ratepayers are men and women who work hard in fields, nursing homes, and restaurants and on construction sites. But despite our hard work, more and more of us are struggling while National Grid had made 3.2 million in profits last year alone. Let me repeat that. 3.2 billion in profit just in one year. Commissioners of the PSC, your responsibility is clear. Suffolk County Worker's Benefit council demand that you the Public Service Commission, fulfill your mandate. Number one, reject the 24 percent rate increase, two, ensure affordable rates, three, stop the shut-off. When you ... the Commissioner that protects the people and not the profiteers.

IN CHORUS: ... have time. ... there we go ... on time. PSC out of time.

A.L.J. LEARY: Thank you.

MR. WHITE: I -- Your Honor, I'm not sure if they called -- okay. They hung up. Okay. Sorry about that Your Honor. I thought there was

another person that wanted to speak on the ...

A.L.J. LEARY: Okay. I did not mute anyone so I think hopefully they'll call back in. And at the end, if anyone wants to make another contribution, I'm happy to hear them. Yeah. So let's go on, Cindell Rock. Cindell Rock.

MR. WHITE: Maybe they called in, Your Honor. I'm not seeing them electronically.

A.L.J. LEARY: If you're a call-in user, please unmute -- and if you're Cindell Rock, please press star three on your phone. Okay. I'm not seeing anyone.

MR. WHITE: They -- they were sharing the line, Your Honor, I believe. Alana (phonetic spelling).

UNIDENTIFIED MALE SPEAKER: For your reference, Your Honor, we have several members of the Suffolk County Worker's Benefit council that are going to be testifying. Cindell is about to speak. I just wanted to inform you that we have a bunch of people testifying on one line.

MR. WHITE: That's right. Thank you.

A.L.J. LEARY: Okay. Just so that I'm clear with everyone. There are registered speakers

and at the end, if time allows, we will ask for additional input. Just so everybody's clear, there is some order to this. So --.

MR. WHITE: Cindell is on now, Your Honor, on that same line.

A.L.J. LEARY: Same line.

MR. WHITE: It is unmuted. Yep. Yep.

A.L.J. LEARY: Okay. Okay.

MR. WHITE: Yes. Yep.

A.L.J. LEARY: Go ahead, Cindell Rock.

MR. ROCK: My name is Cin -- my name is Cindell Rock and I'm here with the Suffolk County Worker's Benefit Council. In the wake of the National Grid's proposed 24 percent rate hike which would cost consumers anywhere from $15.41 monthly increase and commercial heating customers average bill would increase by $70.55 a month at 10.8 percent. With that being said, it's important for us to hold the Public Service Commission to its mandate which is to ensure affordable rates and not to shut off any utilities. Have National Grid reject the 24 percent rate hike and other rate hikes in the foreseeable future.

Rates, consumers and taxpayers have a

stake in the holding of all regulatory bodies, including the Public Service Commission, feet to the fire when it comes to demands that affect our ability to provide basic needs to our families and loved ones. As a representative of the Suffolk County Worker's Benefit Council, I can assure all of you here today that our commitment to hold these governing bodies to their mandate is as strong as it ever was, if not stronger in the face of looming challenges we see before us today. Created in the 1930s, the primary mission of the New York State Department of Public Service is to ensure affordable and safe, secure, and reliable access to electric, gas, steam, telecommunications, and water services for New York State's residential and business consumers at a just and reasonable rates while protecting the natural environment which at this point is in jeopardy because the oil and gas companies are very diligent in their efforts to shift these body's alliances from us the people to some billionaires vacationing in Dubai.

IN CHORUS: Work three jobs and what do I get? Deeper, deeper, deeper in debt. I work three jobs and what do I get deeper, deeper and

deeper in debt.

A.L.J. LEARY: Thank you. Our next speaker is Dorothy Lee. Dorothy Lee. Ms. Lee, if you're a call-in user, please press star one three on your phone.

THE REPORTER: Not electronically, Your Honor. And I don't see a raised hand.

A.L.J. LEARY: I don't either. Okay. We'll go back to Ms. Lee. Myrna Lyons. Myrna Lyons.

MS. LYONS: Myrna.

A.L.J. LEARY: Ms. Lyons, are you there?

MS. LYONS: I am here. What do I do?

A.L.J. LEARY: I can hear you. You can make your statement.

MS. LYONS: Okay. Thank you. My name is Myrna Lyons. I'm a member of the Suffolk County Worker's Benefit council. We, the members of the Long Island community, are concerned about the rate increase being requested by National Grid. PSC, Public Service Commission, the protector of the people, must look at the big picture when making a decision. National Grid is owned by National Grid Transcorp.

In 2022, National Grid increased its profit to $5.97 billion. A five -- a 57.6 percent increase. And in 2021, they made $3.788 billion, a 7.6 -- .16 percent increase from 2020. Meanwhile, National Grid CEO John Pettigrew was paid a salary of $5.6 million in 2019, an increase of $1.1 million from 2018. National Grid has made billions in profit, while people must choose between utilities and food. When National Grid must make repairs or improvement to their equipment, the cost should come from their profits, not from the financially strapped ratepayers. Thank you.

A.L.J. LEARY: Thank you, Ms. Lyons. Our next speaker is Sarah Reed. Ms. Reed, if you are participating by telephone, please press star three.

MR. WHITE: And as she stops speaking.

A.L.J. LEARY: I'm sorry.

MR. WHITE: I'm sorry. Who did you call to speak next, Your Honor? Apologies.

A.L.J. LEARY: Sarah Reed, R-E-E-D. Sarah Reed.

MR. WHITE: Not one of us. Apologies.

A.L.J. LEARY: Okay. No worries. Let's move on. Michael Davis. I did hear from you,

Mr. Davis, a few minutes ago. Just press star three. I think you're a call-in user. Oh, there he is. You are unmuted and can go ahead with your comment, Mr. Davis.

MR. DAVIS: Thank you. My name is Michael Davis. I'm a ratepayer living in Brooklyn, New York. We're out of time or are we still engaged in this process? The fossil fuel company National Grid is coming to the designated government body again for a huge rate hike. They want to build more infrastructure accelerating the devastation to our ecosystems and producing for themselves and their investors one full profit at the expense of all life on earth.

We choose to continue this process in the usual way, producing a reasonable return to their investors. Or we can choose survival. We can't have both. Instead of increasing National Grid's infrastructure by billions at the ratepayer's expense, regulators such you, the PSC, should be working to dismantle all fossil fuel infrastructure here and in Long Island. We need to take control of these investor-owned utilities and make them public. National Grid can't be trusted nor can any other

corporation that is not directly responsible to the public. The drug dealers in the room are dealing. There were days in the summer in Brooklyn when we couldn't breathe due to fires burning out of control hundreds of miles away. What happens way over there affects us here. I have no choice but to go inside and close the window. It's a surprising new reality to be trapped inside and getting the urge to open the window because it's hot and not being able. The air was not safe to breathe and -- and at least during the pandemic, we could open the window. This is just the beginning. The earth is the way it is because fossil fuel companies have obstructed and continue to obstruct renewable alternatives.

National Grid and their enablers, politicians, and lobbyists are threatening the lives of everyone who can't afford to move, rebuild, or mitigate with money, the effects of CO2 and methane, i.e., natural gas. National Grid simply by appearing here is telling us they will sacrifice any life for their bottomline. In the classic corporate manner, they've behaved as a psychopath would without remorse, consideration or consequence or regard for the truth. Thank you very much.

A.L.J. LEARY: Thank you, Mr. Davis. Our next speaker is Monique Fitzgerald. Monique Fitzgerald, if you've called in by phone, please press star three. Monique Fitzgerald.

MR. WHITE: Monique is on the same line I believe.

A.L.J. LEARY: Okay.

MR. WHITE: There we go. Go ahead, Monique.

MS. FITZGERALD: Good evening. My name is Monique Fitzgerald. I am here supporting the Suffolk Workers Benefit Council. I am a ratepayer of the National Grid as well with an outstanding bill something in the range of hundreds of dollars that I cannot afford to pay. So I'm not only just here to support folks who aren't able to pay. But I am also a person who is currently unable to pay their National Grid bill. So what I want to speak about is the fact that this is a real situation that people have to face every single day, how are they going to work around this bill or that bill and et cetera. So the National Grid bill has to be affordable. It is, like folks here have already said, the PSC's mission and mandate to make sure that utilities are

affordable. And that we are not suffering from unnecessary rate hikes.

I also want to point out that the percentage or the -- the essentially the tax that we are pay -- made to pay for our utility service is a regressive tax. We pay more of our income for our utilities as opposed to someone who is earning a higher income.

So the lower income you make, the worse and harder it is for you to pay these utilities. I also live in a disadvantaged community. New York state has identified communities, eighty-five of them on Long Island and Bellport is one of them. So we believe that in a disadvantaged community where we are suffering a regressive tax on our utility bills. We should not have to pay a rate hike. We also should not have to worry about consequences such as shut-offs or aggressive tactics to reclaim funds from us that we just simply do not have.

So again, I just want to reiterate that we should definitely vote no to this rate hike. We need to pressure and put more into making sure that PSC follows their mandate to make sure that we

all have the utilities that we need to -- to survive especially now that it is the summertime.

We are facing extreme heat and we need to make sure that our elders and people who are already oppressed and at risk for extreme heat events are not going to suffer due to being unable to pay these utility bills.

So I'll leave it there and I just want to say freeze the rates, not the ratepayers. Freeze the rates, not the ratepayers, freeze the rates, not the ratepayers. Thank you.

A.L.J. LEARY: Thank you, Ms. Fitzgerald. Our next speaker is Margot Spindelman. Ms. Spindelman, I did see you. Yes. You are unmuted. Please proceed.

MS. SPINDELMAN: My name is Margot Spindelman. I'm a ratepayer living in Greenpoint, Brooklyn. My husband and I have owned our building in Greenpoint for 23 years. We flooded in Irene and Ida and Sandy. The Army Corps of Engineers' plan to prevent flooding by building a 17-foot wall around Greenpoint can be interpreted as a message to get out of the way of climate disaster. My brother, who sells flood insurance, is more direct and he’s

telling us to sell our building immediately which has me looking at you, the Commissioner, you Chair Christian, with a degree of empathy because I can't justify selling my house. It would shift the disaster on to whomever might buy it. And I believe you're going through the same difficult reckoning. But the Con Ed rate case shows us that you've decided to patch the system to extend its life at the expense of the people who will be buying what you approve via their skyrocketing utility bill. You saddled your buyers with poisoned goods instead of throwing that expired technology into the trash.

You're in a tight spot. I can't imagine how it feels to have the U.N. Secretary-General addressing you specifically or the Pope. They're appealing to people with exactly your power to stand up and enact an immediate transition away from fossil fuels as the climate spirals out of control. To quote the Pope precisely, he said recently that the world must institute a rapid and equitable transition to end the era of fossil fuel. And when he says the world, he means you, the power to actually make significant critical change to the future of the world rests with you. I implore you to

protect the public interest and to properly define it.

It is in the public interest to provide cooling as well as heating in a boiling New York City and full support of thermal energy networks would do that and could replace gas quickly. It's in the public interest to fully electrify our building and National Grid should be doing more than giving lip service to available technologies and strategies while it doubles down on gas.

And we see a proposal loaded with hundreds of millions of dollars meant to prop up the existing system, a final money grab before this system gets shut down.

The ratepayers will be left paying for these assets that will eventually be decommissioned. The primarily black, brown, and working-class communities live in the shadow of this infrastructure. It's your responsibility to make sure that disadvantaged communities are not left behind while corporations take every last dollar leaving us drowning, burning, and dying. We need a massive mobilization to end fossil fuel and that should begin in New York City with the PSC launching

a plan to retire the National Grid Greenpoint facility.

Instead, the proposal includes a lifeline for this malignancy in our midst with a half a billion dollars of our money. You must face these tremendous challenges and realize them as opportunities to build what we need now instead of making us pay for what we no longer need and can't afford to sustain.

A.L.J. LEARY: Thank you, Ms. Spindelman. Our next speaker is Jesus Rivera. Jesus Rivera, if you are calling in, please press star D.

MR. WHITE: On that same line, Your Honor, unmuted. Thank you.

A.L.J. LEARY: Thanks.

MR. RIVERA: Good evening, Your Honor and the other ladies and gentlemen of the -- of the Public Service Commission. My name is Jesus Rivera. I'm an activist representative of the Suffolk County Workers Benefit council. And I'm a native resident of Long Island, born and raised in the heart of Nassau County within the small hamlet of Carle Place. And as of today, I am resident of Lake Ronkonkoma where I live with my family. Although our Lake

Ronkonkoma home is heated with oil, for many years when we lived in Carle Place our home was heated with natural gas. Of particular importance to me today is the responsibility of the New York State Public Service Commission and what it owes to me as a consumer of public utilities on Long Island. The PSC was established with the express purpose of defending the rights and interests of consumers within New York State from a tax against the ability to maintain financial stability. It appears however that the Public Service Commission has forgotten its primary responsibility and mandate to the people of New York City and Long Island.

And has instead chooses to ally itself with the interests of a greedy multinational corporation, right, based in the U.K. National Grid is seeking to raise the rate of natural gas prices by 24 percent right on the heels of a global pandemic, when the majority of Long Islanders and New Yorkers are struggling with the effects of inflation in the form of more expensive gas, more expensive groceries, and unaffordable housing. We must -- we vehemently reject and are opposed to the rate hike that National Grid proposes and that's the end of my statement.

Thank you.

A.L.J. LEARY: Thank you. Our next -- I'm going to go back to some of those who I called earlier and just to see if anyone has joined since we began the hearing. Mary Finneran. Mary Finneran, if you're a call-in user, please press star three. Juan Calderon, same instruction. Dorothy Lee. Okay. Anything? Sarah Reed.

MR WHITE: Your Honor.

A.L.J. LEARY: Yes.

MR. WHITE: I believe one of the folks you called was calling in on the -- on the line that we were using for the group.

A.L.J. LEARY: Okay. You're -- you are unmuted. Go ahead and make your statement. Please state your name now.

MS. LEE: Okay. I'm Dorothy Lee. Right now we need -- we will be needing heating and also we have to eat. So we need heating, eating, we need both. We need both.

A.L.J. LEARY: Thank you, Ms. Lee. Did I miss anyone else? Sarah Reed. Is Sarah Reed in the house? Okay. I'm going to open up the floor now to those who are participating. Even if you have

not registered, we do have some time to allow anyone who would like to make a statement to do so. Please reflect your intention to make a statement by raising your hand if you're on a computer or pressing --.

MR. WHITE: We have a -- w

A.L.J. LEARY: Okay. Great.

MR. WHITE: And I'll start with the first one --.

A.L.J. LEARY: George Povall, is that right?

MR. WHITE: That's correct. Go ahead, George.

MR. POVALL: Hi. Hi there. Your Honor. My name is George Povall and I'm the Executive Director of All Our Energy. We are a Long Island non-profit focused on environment protection and education who works to empower public support for renewable energy development. And to inspire the public's action to protect the climate, our environment, and our communities. And so, I'm not really happy to be back ... again today at one of these hearings. And something I would like to hope that we can in the future have a little more lead time. I see that we do have some lead time coming up

into the fall. I -- I -- you know, I think that that's something that we really need to make sure that we have input from as many people as possible. And so besides that, I think the -- my main takeaway here is that we're looking at this proposal from the National Grid. And, you know, once again it’s really just a method to extract -- extract more and more from us and our communities where they're just throwing all sorts of slimly stuff on the wall and hoping some of it will stick and you will allow them to charge us for it. And we -- we've been here before and we -- we've seen this playbook before. And, you know, we -- we've actually found that the independent consultant had to be brought in to show that National Grid was not fully expressing the truth of what they are doing.

So as far as this proposal goes, there's some things from Long Island that we want to make clear. We oppose expansion of the Iroquois Pipeline hidden in this plan which really, when we're talking about leak-prone pipes, is probably the biggest leak-prone pipe out there. And we're going to put higher pressure through it with more gas to run through it. You know, this trans -- traverses

numerous communities who are going to get charged $30 a month more for the pleasure to have this come through their community. And that's -- that's a real hot spot there on National Grid's part. This is really -- like a fool's errand. I want to point out, earlier this year, the Building Decarbonization Coalition released a study called the future of gas in New York State.

And I just want to read you a couple of things from their executive summary. Key findings, number one is that New York's gas utilities continue to invest heavily in their distribution networks with a collective balance of undepreciated distribution assets that has doubled over the last 10 years. That means that -- that they are not depreciating the system as they're supposed to be, their frontload putting in back loading. They're going to stick us with the huge bill in the end. The second thing is that they say here, gas mains are very expensive to replace. And they're saying that the average cost per mile of a gas distribution main installed for New York's gas utilities is over $3 million with a total cost to ratepayers that is closer to 6 million and after additional expenses are

taken into account.

In New York, a mile of gas main serves on average 100 ratepayers thus the avoidable cost of installing new gas distribution main averages over $60,000 per ratepayer. And they're talking about this type of investment over a 20-year period. So this $30 a month is nothing, is a tiny down payment on what they want.

Some of the other things I want to point out from that -- that study is that they say that New York State adopted overarching gas planning framework to govern -- govern filings in both the gas planning docket and climate well compliance docket. And I agree with that. And so does our organization. And that's why this year -- we were able to have New York State lawmakers realize that we need to get new buildings off of fossil fuels and they did that with the Old Electric Building Act or Old Electric Nuclear Building Act, if you want to call it that.

And so this is a great way to save the public interest where we're not sticking people with an obsolete gas system in their brand new homes and buildings that they're building that they're going to probably have to replace well before their expected

life span.

But the one thing that we really need is we need the New York Heat Act, which is languishing in the Assembly right now, which would help this orderly transition to a renewable energy future. And provides an -- an off-ramp for National Grid to move into thermal energy networks which they could be very, very successful at and everybody would be able to tap into that instead of having to -- to figure it out on their own. So I want to just mention one last thing too, that we are watching you. And we see you and we see your potential involvement in disinformation campaigns especially from people -- places like New Yorkers for Clean Power trying to derail the transition to renewables and we're watching. We are watching you and I'm -- I'm sad to say that the -- the legislators were being threatened with crazy ads against them and hope they will listen here and step up and make sure that this is not happening anymore. We cannot allow regulated utilities to lie to us. Thank you very much.

A.L.J. LEARY: Thank you, Mr. Povall. Can I hold you -- can you unmute Mr. Povall one more time, Mr. White? I just want to ask you for the

record to spell the organization that you indicate you are representing.

MR. POVALL: I'm Executive Director of All Our Energy, A-L-L O-U-R E-N-E-R-G-Y.

A.L.J. LEARY: Great. I wrote down something a little bit different.

MR. WHITE: That's correct.

A.L.J. LEARY: Thank you very much.

MR. POVALL: Thank you.

A.L.J. LEARY: Okay. All right. Next Sarah Strauss. Sarah Strauss. You are unmuted, Ms. Strauss. Go ahead.

MS. STRAUSS: Thank you. My name is Sarah Strauss and I'm a ratepayer in Brooklyn. And I'm also a member of 350 Brooklyn, a grassroots organization seeking to address the climate crisis. As an educator, I am asking the PSC to reject in whole National Grid's proposal to increase natural gas tariff revenues. As an educator, a long-time educator, I've -- I have two primary reasons for concern. First, I'm concerned about the huge rate increase National Grid is requesting and its impact on my students and their families and on all families who struggle to pay their bills at current rates.

For many, it's an issue of survival.

Second, I ask the members of the PSC to think if it's relevant to you, think of your children and of your grandchildren's faces as I am thinking of my students faces. And I think of this effort to reinforce dirty natural gas infrastructure when we must quickly -- we are already so very late to this task. We must move quickly to clean energy infrastructure. What do we tell our children if we continue with business as usual? We won't have to say a word. They will understand all too well that we have given up on the possibility of their futures. Thank you.

A.L.J. LEARY: Thank you, Ms. Strauss. Kim Fraczek. Ms. Fraczek, you are unmuted. Go ahead and proceed.

MS. FRACZEK: At the afternoon hearing, just because Chair Christian and Commissioner Maggiore are on the line here that we found -- I'm sorry and I'm Kim Fraczek from the Director of Sane Energy Project. And we found out about this, you know, public hearing, it was -- it was posted in the docket on July 25th which was about a week ago. And I just want to explain to you what

Sane Energy Project and our allies like Long Island Progressive Coalition and 350 Brooklyn. We had to move mountains to get an info session together to notify our neighbors that this hearing was even taking place. A lot of people are on vacation with their families, you know.

So I just want to frame for you that for all of us that are not National Grid or the City of New York or the State of New York. We are all very under-resourced groups. Most of us are running on volunteer power. And, you know, for all of us to have to do the outreach job of a public hearing is -- is -- is inadequate. And I would just really ask that we have more lead time for any future hearings. Thank you. And I'll be speaking again at tomorrow's hearing. Thank you.

A.L.J. LEARY: Thank you. Okay. Anyone else who wishes to be heard and provide a statement this evening? Mr. White, I have someone coming in, I believe, from --.

MR. WHITE: Elaina -- Elaina Hatchlin's line is the line that the group was on.

A.L.J. LEARY: Yes.

MR. WHITE: And there might be another

member there that wants to speak. So I unmuted them for you, Your Honor.

A.L.J. LEARY: Right. Suffolk County Workers Council.

MS. BECK: Hello. My name is Ines Beck. I'm a volunteer with Eastern Farm Workers Association. This is an association that has been around for 51 years, over 51 years, and we are continually fighting for farm workers and other low-income groups and families within our community. And, you know, I've been a volunteer here for over 20 years.

And one of the things that I am very concerned about is when I hear of rate hikes, when I see and I look around our families are suffering, are working almost continuously. Who is raising the children? We hear of all these terrible accidents or, I'm sorry, the shootings that are occurring. Who is home? Who is raising our children? We need help. We need the help of organizations like yours to pull rates down so that our families don't have to work, so that they can take care of their families. This is a very important issue for me. Please, please, look around. I'm comfortable. I can pay the rate.

But I see so many people around me that cannot. And I beg you to have compassion and look to see how we can make the National Grid more effective, that they cannot raise their rates, that they can do a better job of servicing our families. Thank you very much.

A.L.J. LEARY: Ms. Beck, can I ask you to spell your first and last name for the record?

MS. BECK: Excuse me. I didn't hear you.

A.L.J. LEARY: Can I ask you to spell your first and last name for the record, for our court reporter?

MS. BECK: My first name is Ines, I-N-E-S. My last name is Beck, B-E-C-K.

A.L.J. LEARY: Thank you so much and thank you for your comment.

MS. BECK: You're welcome. Thank you for the opportunity.

A.L.J. LEARY: Okay.

MR. WHITE: Your Honor, while we have the line open, is there anybody else that's in the group that wants -- wishes to speak before we lower their hand again?

MS. BORDA: All right. Yes. The name

is Georgina Borda. And I'm just now learning about these egregious economic things that are going to be placed on us. One thing that comes to mind as $3.5 trillion moved after COVID from the poor and the middle class to the upper class. And this organization is supposed to look out for us instead of allowing these corporations to gouge and take advantage of the poor and middle class. So many people are moving off of Long Island because they live -- they can't survive. And this is like not people who, you know, just have one job. These are like middle-class people that were able to enjoy Long Island. And so many of my friends, they can't pay the rent. And people are living in their trailers. Fathers are living in trailers or ... or living in their cars because they don't have enough to pay child support. So we're really asking that your organization truly looks at how people are struggling and do your job.

I mean, I heard the name today, Public Service Commissions. What came to mind is the word commissions. Are the people gaming commissions? I -- I mean, it says that in the word. So please, look out for, you know, the people that are struggling so

thank you for your time.

IN CHORUS: PSC, do your job, PSC, do your job, PSC, do your job, PSC, do your job, PSC, do your job.

A.L.J. LEARY: Thank you. I want to -- Ms. Borda, I want to just make sure. I have Georgina but the last name is B-O-R -- B as in boy, O-R-D-A. Is that correct? Can you unmute, Mr. White?

MS. BORDA: Yes, B-O-R-D-A.

A.L.J. LEARY: Thank you so much. Okay. I have one other speaker. It looks like Mr. Povall wants to come back. Mr. Povall, your line is unmuted.

MR. POVALL: Hey, thank you for having me back. Real quick, I just wanted to correct that I misspoke and I had mentioned organizations that are working to provide disinformation. And that -- that is New Yorkers for Affordable Energy. Thank you.

A.L.J. LEARY: Thank you. Okay. That is I believe the end of our -- to see if anyone else's hand is up. All right. Last call, anyone else want to make a statement? Please raise your hand or press Star 3 All right. We have someone

else from Suffolk County Workers. Come on in. Go ahead. Who is -- would you state your name for the record?

MS. DONNELLY: My name is Kathleen with a K, Donnelly, D-O-N-N-E-L-L-Y.

A.L.J. LEARY: Okay.

MS. DONNELLY: So I have been working for the last 40 years at Stony Brook University Hospital. I'm a nurse practitioner in cardiology. And as I contemplate retirement, right now I am tapering off my time. I have come down here to the Eastern Farm Worker Association to volunteer. It's easy to do and I hear the issues amongst these people. And I have to tell you that having heard all the statistics and the rate hike and the profiteering of -- of National Grid, which I certainly pay to keep gas flowing into my home up in Stony Brook. What I see as a bit of an absurdity is -- what I'm really learning even tonight because I -- I'm comfortable where I am. But the absurdity of what I'm hearing is that this is across the board.

Now, where I live on north shore of line -- Long Island, I live amongst the richest people in the country even, certainly, the one

percent, many, many of them. There is a rich sector on Long Island that I think everyone is aware of, and then there's a middle class, and then unfortunately, there are the people who struggle because they don't make an income that sustains them. The rents are absurd here and the thought of even $28 hike in the bill is a burden on these people. And I think at the very least, at the very least, while National Grid goes as green as -- as it can, it also separates the income of these people and then decides what a hike might be if it needs to be one. But certainly, people that are making under, say, I don't know -- I don't know where to cut if off myself. But I -- and I have not interviewed all the people in this room that are very impassioned about this issue, especially the people that run this Eastern Farm Work association. But there should be a cutoff for the lower income people. We need them. We need people to do the jobs that they do. I mean, I work as a nurse but there are people that work in the cafeteria.

They work as nurse's aides, housekeepers, transport, and many other workers as well. We need people on all three levels to live

here on Long Island and do what they can to serve the community. So I would say that at the very least, National Grid should be drawing a line for where anyone has a pay hike. And the people that have -- are behind in their bill, there should be some kind of payment schedule, something they can do. When I went to nurse's school in 1973 at St. Vincent's Hospital in New York City, I was given a loan at 3 percent. It was for several thousand dollars to pay my tuition off at St. Vincent's and they gave me 10 years to pay it off. And my bill was $27 a month. If you work with the people that are simply needing to have something rearranged for them, you would still get paid but on a schedule that they can manage. But please show compassion, consideration for the very people that do pay you, and that's what I want to say. Thank you.

A.L.J. LEARY: Thank you, Ms. Donnelly. This reaches the conclusion of the public statement hearing. I want to remind you all that you can submit public comments throughout the proceeding by the means that are described in our June 30th, 2023, notice which is available on the Commission's website. It's a public website. Remember the

numbers that I indicated before, 23-G-0225 or 23-G-0226. We will be holding additional public statement hearings tomorrow at one p.m. and six p.m. In addition, we will be holding in-person public statement hearings this fall and the dates have not been established yet. But we will certainly have that available for the public with plenty of notice.

And I want to thank all of you for your participation. And it's critically important. This is really something that is -- is such a critical part of our democracy and our country. So thank you all for your comments and for your participation. Judge Costello and I express our sincere gratitude.

And we also want to thank Commissioner Christian and Commissioner Maggiore for being present. Many thanks to our Court Reporter, Mr. McClain, and to our Office of Consumer Services, Mr. White. As always you're a total pro and Ms. Kailis, thank you. And I see we have Ms. -- Ms. Senator also on the line. Thank you for participating. With that, this concludes our public statement hearing and we are now off the record. Everyone have a wonderful evening.

MR. WHITE: Thank you, Your Honor.

THE REPORTER: We are off the record.

(The hearing concluded at 7:00 p.m.)

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 46, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 8th day of August, 2023.

ANTHONY MCCLAIN, Reporter